



Land Development Values (Compensation) Act (Northern Ireland) 1965

CHAPTER 23

LAND DEVELOPMENT VALUES (COMPENSATION) ACT (NORTHERN IRELAND) 1965

PART I

DEVELOPMENT VALUE OF LAND

- 1 Development value of land.
- 2 Meaning of “unrestricted” and “restricted” value.
- 3 Basis of calculation of restricted and unrestricted values of land.
- 4 Land held by public bodies.
- 5 Applications for ascertainment of development value.
- 6 Restrictions on determination of Part I applications.
- 7 Regulations as to Part I applications.

PART II

COMPENSATION FOR PLANNING DECISIONS RESTRICTING NEW DEVELOPMENT

ATTRIBUTION OF DEVELOPMENT VALUE TO LAND

- 8 Interpretation (Part II).
- 9 Reduction or extinguishment of development value following planning compensation.
- 10 Reduction or extinguishment of development value on initiation of new development.
- 11 Reduction or extinguishment of development value following severance or injurious affection.

Changes to legislation: Land Development Values (Compensation) Act (Northern Ireland) 1965 is up to date with all changes known to be in force on or before 15 May 2024. There are changes that may be brought into force at a future date. Changes that have been made appear in the content and are referenced with annotations. (See end of Document for details) [View outstanding changes](#)

- 12 Supplementary provisions as to deductions from development value.
- 13 Information relating to development value.

RIGHT TO COMPENSATION

- 14 Right to compensation arising out of certain planning decisions.
- 15 Exclusion of compensation in certain cases.
- 16 Exclusion of compensation where permission for alternative development is available.

MEASURE OF COMPENSATION

- 17 Amount of compensation.
- 18 Assessment of depreciation.
- 19 Further provisions as to calculation of depreciation.
- 20 Claims for compensation.
- 21 Apportionment of compensation.
- 22 Payment of compensation.
- 23 Determination of claims.
- 24 Recovery of compensation on subsequent development.
- 25 Amounts repayable in relation to balances of development value.

PART III

COMPENSATION FOR OTHER PLANNING RESTRICTIONS

- 26 Compensation where planning permission is revoked or modified.
- 27 Registration and apportionment of compensation for depreciation.
S. 28 rep. by 2001 c. 2 (NI)
- 29 Compensation for planning decisions restricting development other than new development.
- 30 Public bodies in relation to compensation under section 26.
- 31 Reference of disputes under Part III to the Lands Tribunal.

PART IV

MISCELLANEOUS PROVISIONS

- S. 32 rep. by 2001 c. 2 (NI)
- 33 Calculation of value.
Ss. 34#36 rep. by 1972 NI 17
- 37 Application of s.24 to compensation payable otherwise than under Part II.
Ss. 38, 39 rep. by 2001 c. 2 (NI)
- 40 Powers of entry.
- 41 Regulations, etc.
- 42 Expenses.
- 43 Interpretation.
S. 44 spent
S. 45, with Schedule 5, effects repeals
- 46 Short title.

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SCHEDULES

SCHEDULE 1 — DEVELOPMENT NOT CONSTITUTING NEW DEVELOPMENT

- 1 (1) The carrying out of any of the following works, that is to say— (a)...
- 2 The use as two or more separate dwelling houses of any building which at a...
- 3 (1) Subject to sub-paragraph (2), the enlargement, improvement or other alteration, as often as occasion...
Para. 4 rep. by 1972 NI 17
- 5 The getting, on land held or occupied with land used for the purposes of agriculture,...
- 6 In the case of a building or other land which, at a material date, was...
- 7 In the case of any building or other land which, at a material date, was...
- 8 The deposit of waste materials or refuse in connection with the working of minerals, on...
- 9 For the purposes of this Schedule cubic content shall be ascertained by external measurement.
- 10 Where, after the passing of this Act— (a) any building or works have been erected...
- 11 For the purposes of paragraph 3— (a) the erection, on land within the curtilage of...
- 12 (1) In this Schedule “at a material date” means at either of the following dates—...

SCHEDULE 2 — USE CLASSES FOR PURPOSES OF PARAGRAPH 6 OF SCHEDULE 1

PART I — GENERAL

- 1 (1) In this Schedule— “article” means an article of any description, including a ship or...
- 2 (1) Where a group of contiguous or adjacent buildings used as parts of a single...

PART II — USE CLASSES

- 1 Use as a shop for any purpose except as— (a) a fish and chip shop;...
- 2 Use as an office for any purpose.
- 3 Use as a light industrial building for any purpose.
- 4 Use as a general industrial building for any purpose.
- 5 (1) Use for any work which is registrable under the Alkali, & co. Works Regulation...
- 6 Use for any of the following processes so far as not included in paragraph 5...
- 7 Use, so far as not included in paragraph 5, for the production or employment of...
- 8 Use for any of the following purposes, so far as not included in paragraph 5:—...
- 9 Use for carrying on any of following industries, businesses or trades so far as not...
- 10 Use as a wholesale warehouse or repository for any purpose.
- 11 Use as a boarding or guest house, a residential club, or a hotel providing sleeping...
- 12 Use as a residential or boarding school or a residential college.

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- 13 Use as a building for public worship or religious instruction or for the social or...
- 14 Use as a home or institution providing for the boarding, care and maintenance of children,...
- 15 Use (other than residentially) as a health centre, a school treatment centre, a clinic, a...
- 16 Use as an art gallery (other than for business purposes), a museum, a public library...
- 17 Use as a theatre, a cinema, a music hall, a dance hall, a skating rink,...

— Schedule 3 rep. by 2001 c. 2 (NI

— Schedule 4 spent

— Schedule 5 Part I rep. by SLR 1973; Part II—Repeals

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Changes and effects yet to be applied to :

- s. 26 modified by [2011 c. 25 \(N.I.\) Sch. 3 para. 14\(4\)\(5\)](#)